

ADDENDUM

THIS AMENDING AGREEMENT dated this _____ day of _____, _____

BETWEEN

BUXTON POINT APARTMENTS LIMITED

OF THE FIRST PART

- AND -

MAIMUNA AL HAMID ALPHA ROYAL WOMEN GROUP

OF THE SECOND PART

BUXTON POINT APARTMENTS LIMITED and

MAIMUNA AL HAMID ALPHA ROYAL WOMEN GROUP (the "Parties") entered into the Agreement for Sale dated 23th SEPTEMBER 2021, for the purpose of the sale and purchase of Apartment

no BM/301 on Land reference number/Title no MOMBASA/BLOCK XVII/1821 (the "Agreement for Sale")

A. The Parties desire to amend the Agreement for Sale on the terms and conditions set forth in this Addendum Agreement (the "Agreement").

B. This Agreement is the first amendment to the Agreement for Sale.

IN CONSIDERATION OF the Parties agreeing to amend their obligations in the existing Agreement for Sale, and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree to keep, perform, and fulfil the promises, conditions and agreements below:

Amendments

1. The Agreement for Sale is amended as follows:

a. Addition of a Schedule of Costs (Addition of First Schedule)

1 (a)	Legal Fees for Advocates 2% (per Apartment) for preparation of the Sale Agreement & Sub-Lease and Registration of the same, plus 16% Vat on Advocates Legal Fees	KES 16,704.00	Being 20% deposit of the legal fees under the Advocates Remuneration Act	On execution of the Letter of Offer
1 (b)		KES 66,816.00	Being the balance of the legal fees payable	On execution of the Sale Agreement (SPA/AFL)
2	VAT for commercial space (case by case)		Being 16% of the purchase price (amount may vary subject to valuation by the Government Valuer)	On Completion
3	Legal Costs and Disbursements	KES 20,000.00		On Completion
4	Stamp Duty on the Transfer and Registration of the Sub-Lease per Apartment and if there is no waiver for the Transfer to the Management Company		(@ 4% of purchase price + 40) subject to valuation.	On completion; subject to assessment and valuation
5	Initial Water and Electricity deposit for the Apartment	KES 37,000.00	Power connection Kes. 10,000 Water connection Kes. 27,000	On Completion

6	Initial provisional service charge deposit (being equivalent to Twelve (12) months at Kes. 3,500 per month, this amount is an estimate)	KES 42,000.00	Service charge per month is Kes. 3,500, accrued from handover date	On Completion
7	Subsequent provision service charge (this amount is an estimate, payable from Year 1)	KES 3,500.00	Kes. 3,500 per month, accrued from handover date	Over the course of ownership
8	Sectional Titles processing Registration costs for the Instrument of Transfer and Sectional Plans and formation of the Corporation	KES 23,500.00	One off Kes. 23,500 per unit	On Completion
9	Sewer Infrastructure connection	KES 120,000.00	One off Kes. 120,000 per unit	On Completion

No Other Change

2. Except as otherwise expressly provided in this Agreement, all of the terms and conditions of the Agreement for Sale remain unchanged and in full force and effect.

Governing Law

3. Subject to the terms of the Agreement for Sale, it is the intention of the Parties that this Agreement, and all suits and special proceedings under this Agreement, be construed in accordance with and governed, to the exclusion of the law of any other forum, by the laws of Kenya, without regard to the jurisdiction in which any action or special proceeding may be instituted.

IN WITNESS WHEREOF the Vendor and the Purchaser have set their respective hands hereunto the day and year first hereinbefore written.

SIGNED by the VENDOR
BUXTON POINT
In the presence of:-
DIRECTOR

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}
}
}

SEAL

Signature:

ID No:

PIN No:

I certify that I was present and sawthe
Director of the Vendor freely and voluntarily execute this Addendum and that the above particulars are
their respective National ID Numbers and Tax PIN Numbers and that the originals have been produced to
me for inspection.

.....
Advocate

SIGNED by the PURCHASER

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}
}

Signature:
ID No:
PIN No:

in the presence of:

Advocate

I certify that I was present and saw

MAIMUNA AL HAMID ALPHA ROYAL WOMEN GROUP execute this Addendum and that the particulars of the Purchaser’s National ID Number and Tax PIN Number are correct, and the originals have been produced to me for inspection.

.....
Advocate